

This Instrument Prepared by and Return to:
W. James Gooding III
Gooding & Batsel, PLLC
1531 SE 36th Avenue
Ocala, FL 34471

Recording Costs: \$ _____

**CERTIFICATE OF FOURTH AMENDMENT TO DECLARATION OF COVENANTS
AND RESTRICTIONS FOR AVONLEA**

THIS CERTIFICATE OF FOURTH AMENDMENT TO DECLARATION OF COVENANTS AND RESTRICTIONS FOR AVONLEA (the "Fourth Amendment") is made as of March 4, 2023 ("Amendment Effective Date") (even though it may be executed and recorded at a later date) and is executed (for purposes of paragraph 4 below) by the following:

- Avonlea, LLC, a Florida limited liability company ("Declarant"),
- Avonlea Homeowners Association, Inc., a Florida not for profit corporation ("Association").

WHEREAS:

- A. On or about June 20, 2007, Declarant caused to be recorded in OR Book 4822, Page 759, a *Declaration of Covenants and Restrictions for Avonlea* (the "Original Declaration").
- B. Thereafter the Original Declaration was amended as follows:
- 1). On or about September 10, 2008, Declarant caused to be recorded in OR Book 5094, Page 483,¹ a *First Amendment to Declaration of Covenants and Restrictions for Avonlea* (the "First Amendment"). The First Amendment was re-recorded in OR Book 5097, Page 1742, for the purposes set forth in footnote 1 of the re-recorded instrument.
 - 2). On or about March 13, 2017, Declarant caused to be recorded in OR Book 6545, Page 438, a *Second Amendment to Declaration of Covenants and Restrictions for Avonlea* (the "Second Amendment").
 - 3). On or about March 23, 2017, Declarant caused to be recorded in OR Book 6550, Page 1936 a *Third Amendment to Declaration of Covenants and Restrictions for Avonlea* (the "Third Amendment"). The Original Declaration, as amended by the First Amendment, Second Amendment and Third Amendment, is hereafter referred to as the "Current Declaration."
- C. On March 4, 2023, the Association held its annual meeting. At such meeting, in excess of 75% of the total votes of all Members voted to amend this Declaration pursuant to paragraph 7.1.1 of the Original Declaration.

NOW, THEREFORE, in consideration of the foregoing, which are incorporated herein by reference, the Current Declaration is amended as follows:

¹ All recording references refer to Public Records of Marion County, Florida.

1. **Background.**

- 1.1. As set forth in the Current Declaration, and particularly in the First Amendment, Declarant voluntarily conveyed to the St. Johns Water Management District (the "District") the conservation easements referred to in the Current Declaration and herein as the "Conservation Easements."
- 1.2. The Conservation Easements include a Conservation Easement ("Conservation Easement E") and two Conservation Access Easements (the "Released Easements"), as described on the attached **Exhibit A**.
- 1.3. The District has agreed to release the Released Easements upon the conditions set forth herein.

2. **Amendments Concerning Conservation Easements.**

- 2.1. The Current Declaration is amended to provide that the Released Easements as described in the attached **Exhibit A** no longer constitute Conservation Easements within the scope of the definition in the Declaration. Without limiting the foregoing, paragraph 2.9 of the Original Declaration, as amended by paragraph 2 of the First Amendment, is amended to remove the area designated on the Plats as *Conservation Easement "E."*
- 2.2. The Current Declaration is amended to provide that an additional conservation access easement (the "Additional Conservation Access Easement"), as described in the attached **Exhibit B**, is added as a Conservation Access Easement. Therefore, paragraph 2.9 of the Original Declaration, as amended by paragraph 2 of the First Amendment, is amended to include the Additional Conservation Access Easement described on the attached **Exhibit B**.

3. **Conditions to Effectiveness of this Amendment.** This Amendment is conditioned upon, and shall be effective when an amendment to the *Agreement Concerning Conservation Easements* as recorded in OR Book 5094, Page 456, deleting the Released Easements, and adding the Additional Conservation Access Easement, has been recorded in the Public Records of Marion County, Florida.²

4. **Certificate of Votes.** By executing this Fourth Amendment:

- 4.1. The President of the Association certifies that this Fourth Amendment was approved by in excess of 75% of the total votes of all Members as set forth in Whereas paragraph C.
- 4.2. Declarant consents to this Fourth Amendment pursuant to paragraph 7.1.2.b. of the Original Declaration.

5. **Effect on Current Declarations.** Except as expressly set forth herein, the Current Declaration, is not amended or modified. All references herein, or in the Current Declarations to "this Declaration," "this Agreement," or similar terms shall be deemed to refer to the Current Declaration as amended thereby.

² Such amendment is being recorded simultaneously herewith.

IN WITNESS WHEREOF, the undersigned have executed this Fourth Amendment effective the day and year first above written.

ASSOCIATION

Avonlea Homeowners Association, Inc., a
Florida not for profit corporation

[Signature]
Witness Signature
W. JAMES GOODING III
Witness Printed Name

By: [Signature]
Harvey Vandeven as President

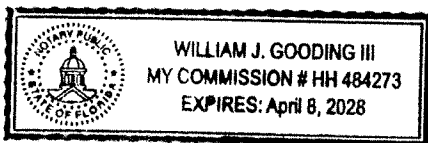
Print Witness Address: _____
1531 SE 36th Ave.
Ocala, FL 34471

[Signature]
Witness Signature
MAT FABIAN
Witness Printed Name

Print Witness Address: _____
4349 SE 20TH ST
OCALA, FL 34471

STATE OF FLORIDA
COUNTY OF MARION

The foregoing instrument was acknowledged before me by means of ☒ physical presence or ☐ online notarization, this 1 day of November, 2024, by Harvey Vandeven as President of Avonlea Homeowners Association, Inc., a Florida not for profit corporation, on behalf of the corporation.



[Signature]
Notary Public, State of Florida
Name: _____

Commission Number: _____
Commission Expires: _____

Notary: Check one of the following:

- ☒ Personally known OR ☐ Produced Identification
☐ Produced Identification (if this box is checked, fill in
blanks below).

Type of Identification Produced: _____

DECLARANT

Avonlea, LLC, a Florida limited liability company

[Signature]
Witness Signature
MATT FABIAN
Witness Printed Name

By: [Signature]
Harvey Vandeven as Manager

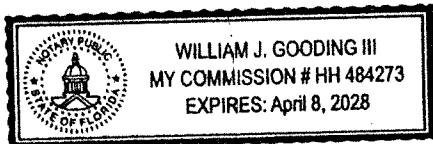
Print Witness Address: 4349 SE 20TH ST
OCALA, FL 34471

[Signature]
Witness Signature
W. Jane Gooding III
Witness Printed Name

Print Witness Address: 1571 SE 36 Ave.
Ocala, FL 34471

STATE OF FLORIDA
COUNTY OF MARION

The foregoing instrument was acknowledged before me by means of ☒ physical presence or ☐ online notarization, this 1 day of November, 2024, by Harvey Vandeven as Manager of Avonlea, LLC, a Florida limited liability company, on behalf of the company.



[Signature]
Notary Public, State of Florida
Name: _____

Commission Number: _____
Commission Expires: _____

Notary: Check one of the following:

- ☒ Personally known OR ☐ Produced Identification
☐ Produced Identification (if this box is checked, fill in blanks below).

Type of Identification Produced: _____

**EXHIBIT A
RELEASED EASEMENTS**

The following on Lot 24 of *Avonlea Phase 1* according to Plat thereof recorded in Plat Book 10, Page 195.

1. Conservation Easement E.
2. Conservation Access Easement Between Conservation Easement E and Conservation Easement D.
3. Conservation Easement Access Area Between Conservation Easement E and SW 101st Court Road.

EXHIBIT B
ADDITIONAL CONSERVATION ACCESS EASEMENT

See attached.

SKETCH OF DESCRIPTION FOR:
AVONLEA LLC
SECTION 35, TOWNSHIP 16 SOUTH, RANGE 23 EAST,
MARION COUNTY, FLORIDA
"AVONLEA PHASE 1"

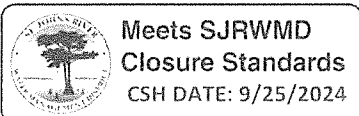
DESCRIPTION:

A PORTION OF LOT 24 OF AVONLEA PHASE 1, ACCORDING TO THE PLAT THEREOF AS RECORDED IN PLAT BOOK 10, PAGES 195 THROUGH 203, OF THE PUBLIC RECORDS OF MARION COUNTY, FLORIDA, LYING IN SECTION 35, TOWNSHIP 16 SOUTH, RANGE 23 EAST, BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

BEGIN AT THE NORTHEAST CORNER OF SAID LOT 24; THENCE ALONG THE WESTERLY RIGHT OF WAY OF S.E. 102ND AVENUE (HAVING A 60' RIGHT OF WAY), S.45°40'04"E., 14.34 FEET; THENCE DEPARTING SAID WESTERLY RIGHT OF WAY, N.89°51'55"W., 245.29 FEET TO THE EASTERLY BOUNDARY OF CONSERVATION EASEMENT D OF SAID PLAT; THENCE ALONG SAID EASTERLY BOUNDARY, N.25°39'19"W., 11.11 FEET TO THE NORTH BOUNDARY OF LOT 24 OF SAID PLAT; THENCE DEPARTING SAID EASTERLY BOUNDARY, ALONG SAID NORTH BOUNDARY, S.89°51'55"E., 239.84 FEET TO THE POINT OF BEGINNING. SAID LANDS CONTAINING 0.06 ACRES, MORE OR LESS.

NOTES:

1. DATE OF SKETCH: SEPTEMBER 17, 2024.
2. SUBJECT TO RIGHTS OF WAY, RESTRICTIONS, EASEMENTS AND RESERVATIONS OF RECORD.
3. UNLESS OTHERWISE SHOWN, UNDERGROUND IMPROVEMENTS NOT LOCATED.
4. PUBLIC RECORDS NOT SEARCHED BY JCH CONSULTING GROUP, INC.
5. BEARINGS SHOWN HEREON ARE RELATIVE TO AN ASSUMED BASED ON THE RECORDED PLAT OF AVONLEA PHASE 1.
6. ADDITIONS OR DELETIONS TO SURVEY MAPS BY OTHER THAN THE SIGNING PARTY OR PARTIES IS PROHIBITED WITHOUT WRITTEN CONSENT OF THE SIGNING PARTY OR PARTIES.
7. THIS SKETCH HAS BEEN PREPARED FOR THE EXCLUSIVE BENEFIT OF THE PARTY(IES) NAMED HEREON, AND SHALL NOT BE DUPLICATED OR RELIED UPON BY ANY OTHER INDIVIDUAL OR ENTITY WITHOUT AUTHORIZATION FROM JCH CONSULTING GROUP, INC.



****NOTE: THIS IS NOT A SURVEY****

SHEET 1 OF 2

ONE IS NOT COMPLETE
WITHOUT THE OTHER

LEGEND:

- LINE BREAK
- R/W RIGHT-OF-WAY
- CONC. CONCRETE
- LS LAND SURVEYOR
- LB LICENSED BUSINESS
- NO. NUMBER
- CL CENTERLINE
- P.C. POINT OF CURVATURE
- P.I. POINT OF INTERSECTION
- L ARC LENGTH
- R RADIUS
- Δ DELTA (CENTRAL ANGLE)
- CB CHORD BEARING
- CH CHORD DISTANCE
- CHANGE IN DIRECTION

SURVEYOR'S CERTIFICATION:

I HEREBY CERTIFY THAT THE SKETCH REPRESENTED HEREON MEETS THE STANDARDS OF PRACTICE AS SET FORTH BY THE FLORIDA BOARD OF PROFESSIONAL SURVEYORS AND MAPPERS IN CHAPTER 5J-17.050-052, FLORIDA ADMINISTRATIVE CODE, PURSUANT TO SECTION 472.027, FLORIDA STATUTES.


CHRISTOPHER J. HOWSON, P.S.M., C.F.M. - LS 6553
OF JCH CONSULTING GROUP, INC.

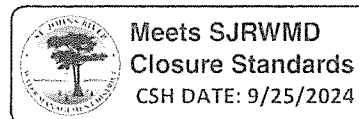
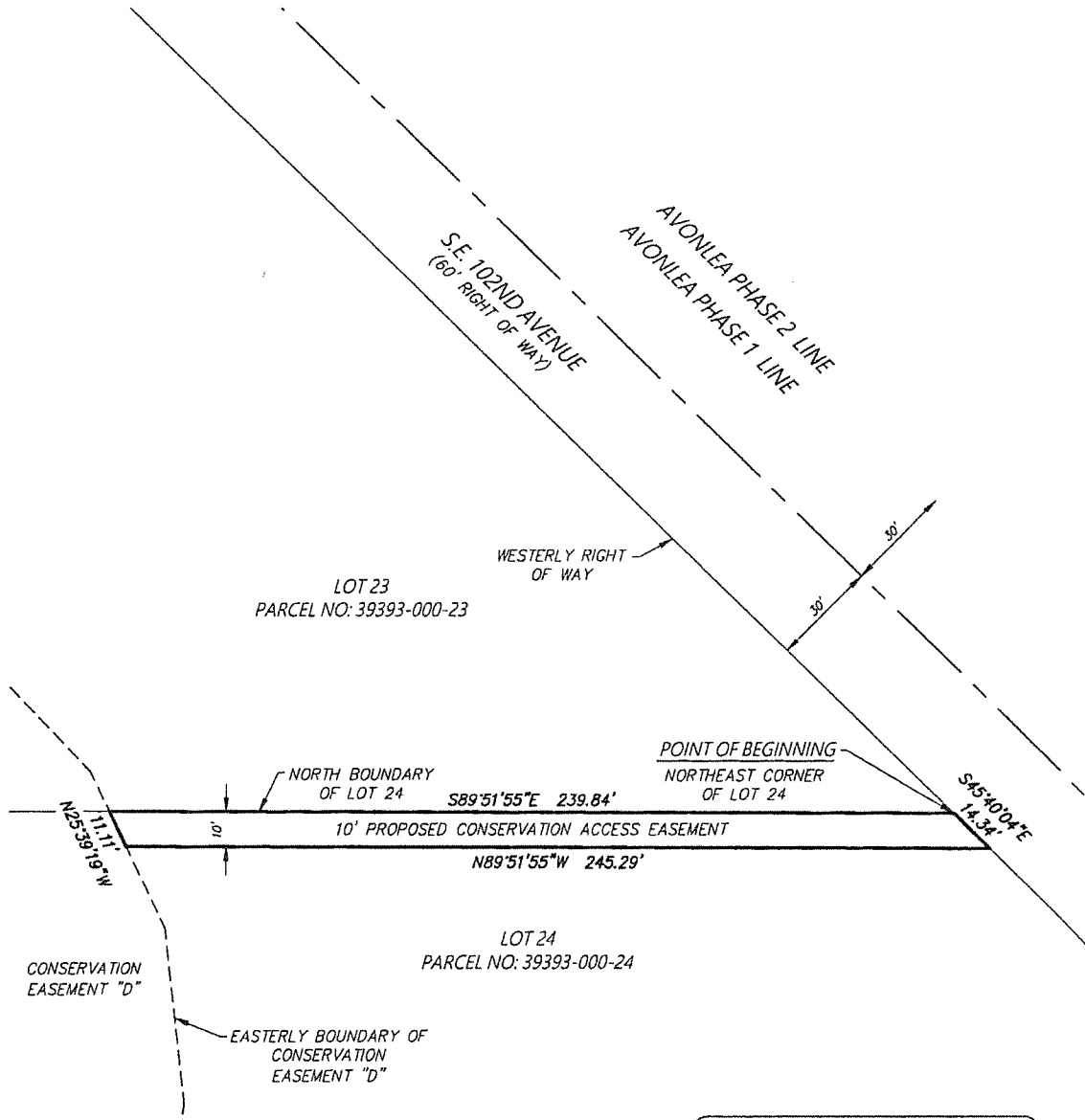
NOT VALID WITHOUT THE SIGNATURE AND THE ORIGINAL RAISED SEAL OF A FLORIDA LICENSED SURVEYOR AND MAPPER

Drawing name: Z:\Projects\240261 Avonlea Phase 1\DWG\240261SKR.dwg SHEET 1 Sep 17, 2024 10:51am by: Administrator

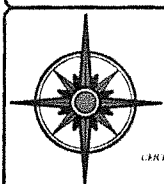


DRAWN:	C.J.H.	J.O.# 240261
REVISED:		DWG.# 240261SKR
CHECKED:	C.J.H.	SHEET 1 OF 2
APPROVED:	C.J.H.	
SCALE: 1" = 40'		COPYRIGHT © SEPTEMBER, 2024

SKETCH OF DESCRIPTION FOR:
 AVONLEA LLC
 SECTION 35, TOWNSHIP 16 SOUTH, RANGE 23 EAST,
 MARION COUNTY, FLORIDA
 "AVONLEA PHASE 1"



NOTE: THIS IS NOT A SURVEY
 SHEET 2 OF 2
 ONE IS NOT COMPLETE
 WITHOUT THE OTHER



JCH
 CONSULTING GROUP, INC.
 LAND DEVELOPMENT • SURVEYING & MAPPING
 PLANNING • ENVIRONMENTAL • G.I.S.
CERTIFICATE OF AUTHORIZATION NO. 104671 CHRISTOPHER J. BROWN, P.E., C.E.M., L.S. 15633
 2500 N. 71ST STREET, SUITE 100, ALA, FLORIDA 32414
 PHONE: 352.495.1882 www.jchge.com

DRAWN:	C.J.H.	J.O.# 240261
REVISED:		DWG.# 240261SKR
CHECKED:	C.J.H.	SHEET 2 OF 2
APPROVED:	C.J.H.	
SCALE: 1" = 40'	COPYRIGHT © SEPTEMBER, 2024	